POLITICAL STUDIES: 2005 VOL 53, 477–496

The Rise of 'New' Policy Instruments in Comparative Perspective: Has Governance Eclipsed Government?

Andrew Jordan
University of East Anglia

Rüdiger K. W. Wurzel
University of Hull

Anthony Zito
University of Newcastle

Governance is a term in good currency, but there are still too few detailed empirical analyses of the precise extent to which it has or has not eclipsed government. This article explores the temporal and spatial characteristics of the governance transition by charting the deployment of new policy instruments in eight industrialised states and the European Union. The adoption and implementation of ('old' and 'new') policy instruments offer a useful analytical touchstone because governance theory argues that regulation is the quintessence of government. Although there are many 'new' environmental policy instruments in these nine jurisdictions, this article finds that the change from government to governance is highly differentiated across political jurisdictions, policy sectors and even the main instrument types. Crucially, many of the new policy instruments used require some state involvement (that is, 'government'), and very few are entirely devoid of state involvement (that is, pure 'governance'). Far from eclipsing government, governance therefore often complements and, on some occasions, even competes with it, although there are some cases of fusion. Future research should thus explore the many complex and varied ways in which government and governance interact in public policy-making.

Academia is awash with neologisms, none more pervasive than – or as apparently important as – that of 'governance'. Stoker (1998, p. 18) claims that it provides a new 'reference point which challenges many of the assumptions of traditional public administration'. Even sceptics concede that it has achieved a 'paradigmatic orthodoxy' in British political science (Marinetto, 2003, p. 597). Despite its widespread use, doubts persist about whether such a broad portmanteau term can be fashioned into a coherent analytical concept and, by implication, a cumulative research programme (Marinetto, 2003). To be fair, the governance 'turn' has generated much theorising, but there is still surprisingly little comparative empirical work. There is, however, a growing appreciation of the need to move beyond theorising and conduct more detailed empirical testing (Kooiman, 2003, pp. 4–5; Marinetto, 2003, pp. 605–6; Eberlein and Kerwer, 2004, pp. 122, 136; van Kersbergen and van Waarden, 2004, p. 165; Kjær, 2004, p. 204). This should 'allow analysts to more completely comprehend the response and capacity of nation states to govern in a more globalized and networked environment' (Flinders, 2002, p. 55).

Further empirical investigation could certainly help to arbitrate between some of the more extreme claims made about the extent and/or timing of governance. Thus, Rhodes (1996, pp. 652–3) claims that governance is synonymous with 'a *change* in the meaning of government; ... a *new* process of governing; or a *changed* condition of ordered rule; or the *new* method by which society is governed'

© Political Studies Association, 2005.
Published by Blackwell Publishing Ltd, 9600 Garsington Road, Oxford OX4 2DQ, UK and 350 Main Street, Malden, MA 02148, USA

(emphasis added). By contrast, Pierre (2000a, p. 5) is more circumspect in arguing that government endures in the new era of governance, but its form and function vary in several important respects.

Examining Governance Empirically

If analysts want to empirically research the contested claim that (traditional forms of) government have increasingly given way to (new modes of) governance, then one obvious starting point is with some baseline definitions. However, there is no universally accepted definition of governance; there is not even a 'consensus on which set of phenomena can properly be grouped under the title of "governance" (van Kersbergen and van Waarden, 2004, p. 165). Hirst (2000), for example, offers five different interpretations, Rhodes (1996) offers six and van Kersbergen and van Waarden (2004) offer no less than nine! Kooiman (2003, p. 5) understandably concludes that '[w]e are still in a period of creative disorder concerning governance'.

This article's main aim is not to explore, let alone empirically assess, all these definitions. Instead, it aims to introduce more 'creative order' into the debate by identifying useful analytical touchstones that should enable researchers to differentiate various forms of governance from government when carrying out empirical research. But what device best empirically captures the essence of the apparent governance transition across a wide range of industrialised countries and the European Union (EU)? Eberlein and Kerwer (2004, p. 127) have argued that it may not be useful to search for an 'empirical measuring stick' to crudely measure the amount of governance, although they do concede the need for a more focused empirical inquiry. After all, the popularity of the term *governance* derives from 'its capacity – unlike that of the narrower term "government" – to cover the whole range of institutions and relationships involved in the *process* of governing' (Pierre and Peters, 2000, p. 1, our emphasis).

If we, therefore, want to empirically examine the process of governance (that is, when non-state actors do more societal coordination for themselves), then we ought to preserve the conceptual breadth of the term, whilst simultaneously gaining the analytical precision needed to empirically assess any relevant temporal, spatial and sectoral patterns. We, therefore, identify a touchstone of governance, that is, a relatively simple analytical device that allows empiricists to distinguish 'new' modes of governance from 'old' forms of government. One promising candidate is, we will argue in this article, the instruments that policy makers in different jurisdictions select to achieve their policy goals.[1] In their analysis of British governance, Richards and Smith (2002, p. 279) argue that it 'is not what the state does that is different, but *how* it does it' (emphasis added). One of their main findings is that whilst policy goals have stayed the same, the 'way they [that is, policy instruments] are used and the use of different forms of control have changed the way the state operates'. Like these and many other analysts, we therefore start from the proposition that the deployment of so-called 'command-and-control' regulatory policy instruments is the quintessence of government (Pierre, 2000b, p. 242). By contrast, the governance literature argues that 'new' (or what are sometimes labelled 'softer') instruments, have become much more widespread (for more details, see Jordan *et al.*, 2003a). Crucially, these are assumed to allow

social actors more freedom to coordinate amongst themselves in pursuit of societal goals, with far less (or even no) central government involvement.

This article analyses the overall pattern of change in the EU and seven of its member states, namely Austria, Finland, France, Germany, Ireland, the Netherlands and the UK. These jurisdictions cover a relatively wide range of different European states in terms of size, state (or 'government') traditions and preferences for policy instruments. The addition of Australia also helps to assess whether similar dynamics of change are present within a highly developed, but non-EU state. Our analysis focuses on the environmental policy sector because it is inherently *regulatory* in nature (Weale, 1992), although regulation inevitably has distributive and redistributive consequences. We show that regulation was the preferred environmental policy instrument in all nine jurisdictions in the early 1970s, but that 'new' environmental policy instruments (NEPIs) have become much more common. Environmental policy represents a 'critical' case in this respect because it is not a field in which we would reasonably expect new instruments to flourish. On the contrary, the strong legacy of government by regulation in the environmental policy field since the late 1960s would make any widespread and consistent shift to NEPIs all the more significant. As there is already a rich literature that explores the main drivers of NEPI use (Golub, 1998; Knill and Lenschow, 2000; Jordan *et al.*, 2003a), we focus on the main patterns of uptake in order to explore what these reveal about the contours and pacing of any governance transition.

The remainder of this article is structured as follows. We next explore some of the different definitions of the terms *governance* and *government*, and emphasise the most important areas of (dis)agreement. We then briefly define NEPIs, and make a preliminary attempt to assess the different forms in which governance is appearing by relating these to the traditional instruments of policy (that is, regulation) using a simple typology. We next examine how the overall pattern of instrument use varies across nine jurisdictions throughout the period of modern environmental policy (that is, since around 1970). Finally, the sixth and seventh parts draw together the main threads of our argument and look forward to the next phase of empirical research on governance.

On Government and Governance

Governance is not a new term (Pierre and Peters, 2000, p. 2), but its popularity has undoubtedly grown in the last decade. The *Shorter Oxford English Dictionary* (Brown, 1993) defines *to govern* as 'to guide, direct or steer society'. Political scientists used to treat governance as a synonym for government (Stoker, 1998, p. 17), but recently the majority consider them to be analytically distinct terms. Recently, Bevir and Rhodes (2003, p. 45) defined *governance* as 'a change in the nature or meaning of government'. However, moving beyond this set of broad definitions makes it very apparent that different branches of the social sciences employ their own, somewhat distinct, interpretations (Kjær, 2004). Indeed, different branches of political science appear to use it rather differently. Thus, scholars of international relations tend to explore the international drivers and manifestations of governance in a global society that has never experienced world govern-

ment (Rosenau, 1992, pp. 8–9), whereas comparativists are normally preoccupied with understanding what governance implies for the internal attributes and functions of 'the state' *qua* government. Significantly, for comparative empirical work, most of the interpretations identified above are not precise enough to differentiate new modes of governance from traditional forms of government. In order to overcome this problem, our article focuses on 'new' and 'old' policy instruments as analytical touchstones in order to better differentiate between governance and government, whilst at the same time subjecting this distinction to comparative empirical analysis.

In spite of these disagreements, there is relatively widespread agreement on a number of basic points. First and foremost, most scholars associate governance with a decline in central government's ability to steer society. According to Stoker (1998, p. 17), *governance* refers to the emergence of 'governing styles in which the boundaries between and within public and private sectors have blurred'. Pierre and Peters (2000, pp. 83–91) contend that the state is losing its steering ability as control is displaced: upwards to regional and international organisations such as the EU; downwards to regions and devolved localities; and outwards to international corporations, non-governmental organisations and other private or quasi-private bodies. Stoker (1998, p. 26) claims that governance marks a 'substantial break from the past'. Rhodes (1997, p. 47) argues that it provides a new 'operating code' for the British government. Other commentators are much less assertive in their claims (see above), but whilst the precise importance of governance is often left tantalisingly undefined, in most accounts its significance is nonetheless implied.

Secondly, much of the recent governance literature emphasises the growing importance of multi-level government structures such as the EU for the spread of 'new' modes of governance (Hooghe and Marks, 2003). This literature has gained a boost from the publication of the European Commission's White Paper on European Governance (COM [2001] 428, final). However, its analytical focus is quite diffuse; it also mainly focuses on the EU level without giving sufficient attention to the ways in which 'new' modes of governance are (or could be) implemented at member-state level and below.

Thirdly, and more controversially, governance and government are often (and most notably in the older political science literature) regarded not as discrete entities, but two poles on a continuum of different governing types (Finer, 1970). If the extreme form of government was the 'strong state' in the era of 'big government' (Pierre and Peters, 2000, p. 25), then the equally extreme form of governance is an essentially self-organising and coordinating network of societal actors (Schout and Jordan, 2005). Crucially, such networks are said to 'involve not just influencing government policy, but taking over the business of government' (Stoker, 1998, p. 23). They are 'self-organising' in the sense that they actively resist government steering (Rhodes, 2000, p. 61). To use Osborne and Gaebler's (1992) popular distinction between 'steering' (setting policy goals) and 'rowing' (delivering those goals through the selection and use of instruments), they steer as well as row.

Placing government and governance at the opposite ends of a theoretical continuum is, however, unlikely to be sufficiently sensitive to pick up changes in the form and function of governance.[2] In what ways might governance and

government interact along this continuum of types? Drawing on Eberlein and Kerwer (2004, p. 136), there are at least four possible forms of interaction: (1) they could *complement* one another without actually merging; (2) they could *merge* with one another; (3) they could *compete* and conflict with one another; or (4) one could eclipse or actively replace another. For the sake of convenience, we label these four potential forms of interaction *co-existence*, *fusion*, *competition* and *replacement*, respectively. This article examines the extent to which these four types of interactions appear in the pattern of instrument use in and across the nine jurisdictions.

Fourthly, to investigate these interactions, we focus on NEPIs (that is, supposedly new forms of governance). We have already noted the strong tendency in the political science literature to associate government with (traditional form of) regulation, whereas governance is often seen as becoming manifested in the appearance of 'new' policy instruments (Zito *et al.*, 2003). Heywood (2000, p. 19), for example, regards the 'ability to "make law (legislation), implement law (execution) and interpret law (adjudication)" as the "core functions" of government'. For Richards and Smith (2002, p. 279), 'government *is* bureaucracy, legislation, financial control, regulation and force' (emphasis added). Governance, by contrast, is characterised by a growing use of non-regulatory policy instruments such as NEPIs. These are proposed, designed and implemented by non-state actors, sometimes working alongside state actors, but sometimes also independently. We explore the various forms that this may take in the next section. There is a surprisingly strong measure of agreement on this fourth point. Thus, international relations theorists such as Rosenau (1992, p. 4) claim that governance equates to policy 'goals that may or may not derive from legal and formally prescribed responsibilities and do not necessarily rely on police powers to overcome defiance and attain compliance'. Meanwhile, domestic politics scholars such as Stoker (1998, p. 17, emphasis added), often claim that the very '*essence* of governance is its focus on governing mechanisms *which do not rest on recourse to the authority and sanctions of government*' (see also Pierre, 2000b, p. 242).

To summarise, our article examines how far the interaction between different types of ('new' and 'old) policy instruments yields new analytical insights into the interaction between (new modes of) *governance* and (traditional forms) of *government*. It is beyond the scope of this article to explore the empirical implications of the presence of different instrument types in each for the overall balance between 'state steering' and 'societal self-governing'. Instead, we focus on what the policy instrument choices in different jurisdictions say about the changing roles of state and societal actors in the governance transition (see also Knill and Lehmkuhl, 2002).

Governance by 'New' Policy Instruments

Having identified our analytical touchstone and described some of the possible forms of interactions, we now look more closely at the form and function of the distinct types (and sub-types) of policy instruments. Howlett (1991, p. 2) defines these broadly as the 'myriad techniques at the disposal of governments to implement their policy objectives'. The literature describes many types of 'new' policy instruments, including benchmarking, co-regulation, voluntary codes of conduct and negotiated agreements (Zito *et al.*, 2003, p. 509). The environmental policy

literature further distinguishes between traditional regulatory instruments, the mainstay of environmental policy going back as far as the late 1960s (see above), and 'newer' instruments or NEPIs (Knill and Lenschow, 2000; Jordan *et al.*, 2003b). Our analysis concentrates on four main sub-types of NEPI, namely market-based instruments, eco-labels, environmental management systems and voluntary agreements. The remainder of this section defines these instrument types whilst referring to definitions put forward by international bodies (such as the Organisation for Economic Co-operation and Development [OECD]), before discussing how far they embody features of 'governance' and or 'government'.

Market-Based Instruments (MBIs): MBIs 'affect estimates of costs of alternative actions open to economic agents' (OECD, 1994, p. 17). The OECD distinguishes between four main types: (1) eco-taxes[3] (including charges and levies); (2) tradable permit systems[4]; (3) subsidies (including the granting of fiscal incentives to less polluting products and/or activities); and (4) deposit–refund schemes. Because of space constraints, our analysis focuses only on the more popular eco-taxes and tradable permits (OECD, 1999a). International databases show that the total number of MBIs used in OECD countries has strongly grown since the early 1970s, as has the diversity of sub-types.

Eco-labels: Eco-labels mainly rely on moral suasion; they provide consumers with information about the environmental impact of their purchasing decisions. The OECD (1999b) differentiates between three sub-types: (1) externally (that is, essentially state) verified, multi-issue schemes (Type I); (2) unverified self-declaratory schemes (Type II); and (3) single-issue schemes (Type III). In comparison to regulation and also some MBIs, eco-labels do not directly steer society. Rather, they seek to harness market forces by encouraging consumers to make more informed purchasing decisions. That said, in markets where green consumerism is very strong, eco-labels may in practice steer producers in ways similar to traditional regulatory standards (OECD, 1999b).

Environmental Management Systems (EMSs): EMSs, such as the EU's environmental management and audit system (EMAS) and the International Standard Organisation's (ISO) ISO 14001, encourage industry to behave more responsibly. Although their precise characteristics differ, both systems require member companies to audit the environmental impact of their activities, establish internal management systems to monitor and (where possible) reduce these impacts and provide stakeholders with a regular statement of their activities. In exchange, the business in question is granted an official confirmation (or logo) by a competent national authority (as in the case of EMAS) or the ISO (as in the case of ISO 14001), which they can use in their advertisements. Although participation in both schemes is, in theory, entirely voluntary, firms are often driven to participate by market pressures. Governments may also encourage participation by linking membership to a lighter regulatory regime.

Voluntary agreements (VAs): The EC has adopted the following generic definition: 'agreements between industry and public authorities on the achievement of

environmental objectives' (COM [96] 561 final, p. 5). Börkey and Lévèque (1998) provide a more specific typology that distinguishes between negotiated agreements, public voluntary schemes (PVSs) and unilateral commitments. *Negotiated agreements* are formal contracts negotiated between industry and public authorities, whose aim is often to address quite specific environmental problems (for example, emissions of a certain type of pollutant). They may or may not be legally binding, but normally their contents are revealed to the public. PVSs are normally established by public bodies like the ISO and the EU, which define certain performance criteria and other membership conditions. Some EMSs discussed earlier could also be defined as PVSs. *Unilateral commitments*, which are widespread in Austria and Germany, consist of more general statements and promises made by individual companies and/or industry associations. Many of the recent corporate social-responsibility activities of large companies, such as Shell, also fall into this category.

A Simple Typology of Policy Instruments

To simplify our presentation, Table 1 provides a typology of this complex array of sub-types on the basis of who (or what) determines the ends and means of policy. Whilst Table 1 focuses on the theoretical (or 'textbook') characteristics of the sub-

Table 1: A Simple Typology of Instrument Types

	The State Specifies the Goal to be Achieved	*The State Does Not Specify the Goals to be Achieved*
The state specifies how the goal is to be achieved	Regulation (for example, linking an emission target to the use of a certain type of technology); fiscal incentives (for example, tax reductions for a less polluting technology)	Technology-based regulatory standards (for example, best available technology)
Non-state actors specify how the goal is to be achieved	Most negotiated Voluntary Agreements; some market-based instruments; some regulations (for example, environmental quality objectives)	Environmental management systems; most market-based Instruments; some voluntary agreements; eco-labels

Source: Based on Russell and Powell (1996).

Table 2: A Simple Typology of Governance Types

	Government Determines Societal Goals (Ends)	*Society Determines Societal Goals (Ends)*
Government selects the means of policy	STRONG GOVERNMENT: hierarchical steering from the centre	HYBRID TYPES
Society selects the means of policy	HYBRID TYPES	STRONG GOVERNANCE: society is 'self-steering' and 'self-organising'

types, rather than their actual use 'in context', it does start to reveal both the extensive overlap between the main sub-types and, by implication, some of the potential difficulties of clearly distinguishing government from governance. For instance, forms of regulation are found in three of the four cells (that is, regulation can be used in a very hierarchical fashion, but in almost all states at least some issues are normally negotiated between the regulator and the regulated). The definitions of instrument sub-types are also not discrete; for instance, many EMSs could be defined as PVSs (that is, VAs).

By now, it should be apparent that government and governance (at least as the existing literature defines them) are actually much more intertwined than is implied by some governance theorists (see previous statements). In fact, a closer examination reveals that the extent of the blurring between the two categories is even more substantial than Table 1 suggests. At its heart, the governance debate is essentially concerned with understanding who or what steers society. Thus, under a 'government' approach, society is steered by central government, whereas in a 'governance' model, 'society actually does more self-steering rather than depending upon guidance from government' (Peters, 2000, p. 36). Table 2 recasts the contents of Table 1 accordingly.

Both Tables 1 and 2 identify two important functions that need to be discharged when instruments are used: (1) the determination of the *means* of policy (that is, for us, the instruments of policy) and (2) the determination of the ultimate *ends* to be achieved (that is, the policy objectives). To suggest that a transition to governance is occurring does not necessarily imply that both of these functions are changing at the same time. But in general, 'government' is found on the top-left cell of Table 2, and the further we travel towards the bottom-right cell, the more important societal self-organisation and steering (that is, governance) become. We have already noted that many scholars assume that society is undergoing just such a shift.

On a closer inspection, government features in all four cells. It also has some roles to play in relation to all four instrument types. So, to take VAs as an example, only unilateral commitments are actually instruments of 'self-organising' governance

because they offer businessmen an entirely voluntary means of communicating with their stakeholders. Negotiated agreements normally involve so much state activities that they actually sit closer to the government-end of the continuum of governing types referred to earlier. Similarly, some EMSs involve, or are closely allied to, regulation, whereas others do not. Eco-labels are commonly regarded as relatively un-intrusive policy instruments, but in reality only Type II schemes formally constitute 'self-organising' governance. The dynamics that emerge around these different combinations have been explored by, for example, Cashore (2002). The other two sub-types involve the state and/or the EU acting as a supporter, a verifier or a referee of the labelling system. Finally, neither eco-taxes nor tradable permits are devoid of government involvement: government is commonly involved in designing, initiating and overseeing them. In short, they are not entirely 'self-organising' either.

So far, we have not looked in detail at how these four instrument types are actually used in the nine jurisdictions, less still the interaction between them. Nevertheless, it is already clear that the neat theoretical distinction between governance and government is, in reality, rather blurred, even when the empirical focus is on something as seemingly straightforward as policy instruments. This can also be seen from the fact that regulation is, as some commentators claim, often strongly associated with government, but is by no means limited to it. New and more interactively determined forms of regulation actually exhibit many features of governance. In the following sections, we explore the interactions *between* governance and more traditional instruments of government in more empirical detail, and offer a more detailed assessment of the temporal, spatial and sectoral patterns of NEPI 'in context', in order to better comprehend the nature and extent of that blurring.

Instruments of Environmental Governance: Patterns of Use

Table 3 provides a summary of the distribution of NEPIs across the eight countries in our sample and the EU.[5] Rather than populate the cells with numbers,[6] we have decided instead to offer a more qualitative weighing. The descriptors indicate the popularity of a given instrument in each jurisdiction relative to the other eight jurisdictions, rather than to some absolute baseline.[7]

Three things are immediately apparent. First, all nine jurisdictions have adopted at least one form of NEPI. To that extent, governance has become more dominant. Thirty years ago, only a small number of countries had adopted NEPIs, whilst the majority relied upon regulation. Today, even the least innovative countries (in our sample, Ireland and Australia) have adopted some NEPIs, although regulation remains important and/or dominant in all nine jurisdictions. Secondly, although NEPIs are more popular everywhere, they are more popular in some jurisdictions (for example, the Netherlands, Germany and Finland) than others (for example, Austria, Australia and Ireland). There are also important cross-sectoral variations that are explored later. Thirdly, no jurisdiction is enthusiastic about all the new instruments; even 'leaders' have shunned certain types of new instruments (for example, tradable permits in Germany and Finland; eco-labels in the Netherlands and eco-taxes in the EU). Furthermore, some countries are extremely enthusias-

Table 3: The Distribution of New Environmental Policy Instruments in the Nine Jurisdictions, circa 2000

	Eco-taxes	*Tradable Permits*	*Voluntary Agreements*	*Eco-labels*	*Environmental Management Systems*
Finland	High	Low	Medium	High	High
Germany	Medium	Low	High	High	High
Netherlands	High	High	High	Low	Medium
Austria	Medium	Low	Medium	Medium	High
UK	Medium	High	Low/Medium	Low	Low/Medium
Ireland	Low	Low	Low/Medium	Low	Medium
European Union	Low	Low/Medium	Medium	Medium	Medium
France	Medium	Low	Low	Low	Low
Australia	Low	Low	Low	Low	Medium

Source: Based on the data assembled in Jordan et al. (2003a).

tic about a particular type of NEPI (for example, tradable permits in the UK; EMSs in Australia), but exhibit little or no interest in the rest.

In short, just as there were enduring differences in the way that traditional instruments of environmental policy (that is, mainly regulation) were applied in the past (for example, Vogel, 1986), there appear to be subtle, but important, differences in the utilization of NEPIs today. The next section, therefore, looks at how the nine jurisdictions use each individual instrument to ascertain if this offers a better insight into the interaction between government and governance of instruments (that is, is it one of *co-existence*, *fusion*, *competition* or *replacement*?).

Market-Based Instruments

The Nordic countries, the Netherlands and France, introduced charges and levies on water and air pollution as early as the mid-1970s. Germany adopted a waste-water levy in 1978, but this was not fully implemented until the early 1980s. By contrast, the UK did not adopt environmental taxes until the early 1990s. Australia is an even more recent convert, and Ireland has barely started.

In general, the 'followers' are now beginning to catch up with the initial 'leaders' as MBIs are more widely applied (European Environment Agency, 2000). However, the gap between the wealthier Northern and poorer European countries persists, and on some criteria, may even be growing. Thus, the pioneers have now proceeded to more sophisticated MBIs (such as ecological tax reforms and emissions trading), whereas the followers are still employing first-generation MBIs such as simple effluent taxes and user charges.

The range of MBIs used has also evolved. In the 1970s, cost-recovery charges dominated, but in the 1990s policy makers began to experiment with 'second-generation' approaches involving hypothecation. In our sample, Austria (for

example, landfill taxes); Finland (for example, the oil-waste levy); Germany (for example, the duty on mineral oils) and the UK (for example, the landfill tax) formally 'earmark' the revenue from environmental taxes to various 'good' causes. Ecological tax reform is the most sophisticated form of eco-taxation. Again, there are clear leaders (the Netherlands, Finland, France, Germany and the UK all adopted significant ecological tax reforms in the 1990s) and followers (Australia, Austria and especially Ireland). Tradable permits, originally developed in the USA, are still relatively uncommon in the EU. In our sample, only the UK and the Netherlands have successfully adopted them, although all the member states are now implementing an EU-wide scheme covering greenhouse gases (see below).

Finally, the overall pattern of use is highly differentiated across the various sub-sectors of environmental policy. Some sub-sectors, such as fuels, road transport, energy consumption and waste, are relatively heavily populated by MBIs, whereas in the agricultural sector there are hardly any, although at one stage Austria adopted a fertilizer tax. In Europe, eco-taxes are now commonly used across a large swathe of different sectors (although the aforementioned sectors are covered more extensively than others are), whereas the use of tradable permits has largely been limited to reducing greenhouse gas emissions (OECD, 2001).

Eco-labels

The German government adopted the world's first national eco-label scheme in 1978. Austria (1991), Australia (1992), France (1992) and the Netherlands (1992) eventually adopted their own schemes. Ireland and the UK are the only states that rely upon the EU's eco-label scheme, which has a very low profile amongst most producers and consumers in the EU. By 2003, only 158 EU eco-labels had been awarded across 15 member states, in stark contrast to the 4,000 or so national eco-labels issued under the German national scheme. However, the French, Dutch and, to a lesser degree, the Austrian schemes, all suffer from relatively low adoption rates.

As with VAs, each eco-label scheme has its own peculiar national characteristics. Thus, the Austrian, Dutch and French labels all place relatively greater emphasis on life-cycle analysis than the German scheme. The various schemes even address different issues, depending on local priorities. Thus, Austria pioneered an eco-label for tourism, the Netherlands was the first to award labels to certain types of foods and flowers, Finland regards forests as an important issue and Australia emphasises energy use.

Environmental Management Systems

In contrast with the previous three sub-types, environmental auditing was (at least, initially) 'self-organised' by industry. It first developed in the USA, primarily as an internal management instrument, but was soon adopted by governments and international bodies as an instrument of public policy (the EU's EMAS scheme was established in 1993; ISO 14001 appeared in 1996). As originally designed, these two schemes were somewhat different. However, in 2001, the EU relaunched EMAS to make it more compatible with the ISO's scheme, whilst preserving its superior environmental credentials.

Table 4: Registrations or Certifications for the European Union's Environmental Management and Audit System and for International Standard Organisation 14001, by Country

(a) Environmental Management and Audit System Registrations			*(b) International Standard Organisation 14001 Certifications*		
	Number	*Number per million population*		*Number*	*Number per million population*
Austria	310	38.5	Finland	750	146.5
Germany	2,414	29.5	Australia	1,485	82.5
Finland	41	8.0	The Netherlands	1,073	69.2
Ireland	8	2.2	European Union	19,998	54.5
Netherlands	27	1.7	UK	2,917	49.8
UK	78	1.3	Ireland	170	47.0
European Union	3,695	1.0	Germany	3,700	45.2
France	24	0.4	Austria	301	37.4
Australia	Not available	Not available	France	1,666	28.5

Notes: The Environmental Management and Audit System Registrations are measured in May 2003. The International Standard Organisation 14001 certifications are measured in December 2002.

Source: Based on Environmental Data Services (2003, p. 21).

These differences are reflected in the relative adoption patterns (see Table 4). Austria and Germany completely dominate the EMAS scheme; together they account for around 70 percent of all the registered sites. Germany and Austria also dominate the league table of ISO 14001 certifications in the EU, but there are a number of other countries where certification is popular. Currently, the total number of EU registrations under the EMAS scheme is just under 3,700 as opposed to nearly 20,000 certifications under ISO 14001. In effect, a pronounced (although by no means uniform) shift is underway in Europe from a soft 'new' instrument (EMAS) to an even softer and 'newer' instrument, namely ISO 14001. As with the other three types of NEPIs, the way in which EMSs are interpreted and applied is also intrinsically different. For instance, some countries offer government incentives to firms that adopt an EMS whilst some do not. Germany even offers a financial incentive (that is, a government subsidy) to those firms that join EMAS in preference to the ISO 14001 scheme.

Voluntary Agreements

Every EU state has adopted some VAs, but the vast majority are still found in the Netherlands and Germany. By 2002, these two had adopted more than 230 VAs between them. Most VAs are non-binding and voluntary, but some states are now experimenting with more formal and binding forms (that is, negotiated agreements). The same pattern of leaders and followers is also apparent with respect to VAs: in this case France, Germany and the Netherlands pioneered their use, with the rest following.

The intrinsic nature of VAs also varies quite significantly across the nine jurisdictions. In the Netherlands, VAs supplement regulation rather than being an alternative to it (that is, they *coexist*). Since the mid-1990s, most Dutch VAs have been adopted in the form of legal contracts or 'covenants'. In Germany, VAs tend to be non-binding, but they are often negotiated 'in the shadow of the law' that is proposed by industry to pre-empt the imposition of regulation (that is, a form of *competition*). In Austria, which has a relatively lower number of VAs (all of which are non-binding for constitutional reasons), a similar pattern can be observed. In France and Ireland, roughly half of the VAs are binding. VAs are not very common in the UK. Those that exist tend to be flexible and non-binding. Recently, however, the UK has pioneered the use of policy instrument packages (that is, *fusion*) that combine VAs, eco-taxes and tradable permits. Finally, the sectoral focus of VAs is also very uneven: most are found in the energy/climatic change, chemicals and waste sectors; very few exist in the agricultural, transport and tourism sectors of any jurisdiction.

Regulation

Despite the 'frenzy' surrounding the apparent popularity of new modes of governance (Eberlein and Kerwer, 2004, p. 125), our empirical research reveals that regulation is still the most widely used instrument of environmental policy. In other words, there has been no wholesale switch to NEPIs, less still a significant, long term process of deregulation (that is, *replacement*) either at EU or member-state level (Armstrong, 2000; Héritier, 2002).

We offer some explanations of our own (and some qualifications) in a later section, but three points are worth making here. First, regulation often serves an important support function that cannot easily be performed by other instruments (that is, *co-existence*). For example, regulations often are used to implement NEPIs, set the rules governing their operation and penalise defectors (see OECD, 2001). Secondly, in some countries (most notably Austria, Finland and Germany), the public strongly supports the use of regulation to counter serious pollution. In what is in effect a political *competition* between different sub-types of instrument, regulation possesses several highly prised attributes (see above). Consequently, instead of replacing regulation, NEPIs are more likely to be used to address a set of more specific, new tasks. These include: (1) filling in the 'cracks' in the regulatory system (for example, VAs) (that is, *co-existence*); (2) dealing with emerging issues such as climatic change (for example, tradable permits) that are not yet heavily regulated (that is, *co-existence*); or (3) dealing with issues that are not suited to a regulatory approach (for example, sustainable consumption, and so on) (that is, neither *co-existence*, *fusion*, *competition* nor *replacement*). Finally, by contrast with the 1970s, the EU is now *the* dominant driver of national environmental policy (NEP) development in western Europe (Jordan and Liefferink, 2004). Nevertheless, curiously, its influence over national instrument selection and adoption remains very weak. For reasons discussed more fully below, it mostly attempts to steer society by issuing regulations, which its member states are compelled to transpose into their own national legal systems. As long as most NEP goals are determined at the EU level and regulation remains the preferred implementing instrument, the scope for NEPI use at the member-state level will be externally constrained.

Conclusions: Has Governance Eclipsed Government?

This article has shown that the overall pattern of instrument use is strongly differentiated by country, period and sector. The total number and the diversity of NEPIs used in the eight countries and the EU have grown, in some cases spectacularly, with environmental taxes, VAs and eco-labels proving especially popular. However, no single type of NEPI is overwhelmingly popular across all nine jurisdictions. In fact, some types of MBIs (for example, tradable permits) have only recently been deployed, whilst some 'old' policy instruments (for example, subsidies) remain (although they are very much discredited). In some countries, the adoption of NEPIs has been stunningly fast, whereas in others, they are either being adopted much less quickly (for example, in Australia (except ISO 14001) and Austria (except EMAS and ISO 14001)) or barely at all (for example, in Ireland for all sub-types apart from ISO 14001).

If the adoption of NEPIs is employed as a simple touchstone of governance as our initial propositions suggested, then clearly there has been no wholesale and spatially uniform shift from government to governance across our nine jurisdictions. The overall pattern is much more highly differentiated. Crucially, most of our cases could be placed somewhere along the continuum of governing types described earlier, rather than at the extreme ends. As these spatial and temporal variations are not adequately explored in the existing literature on governance, they are worth closer empirical investigation and theoretical interpretation.

The Resilience of Regulation

The paucity of some NEPI types can be partially accounted for by national-level factors such as deeply engrained national policy styles, industry opposition and the absence of effective champions (OECD, 2001; Jordan *et al.*, 2003a). These obstacles notwithstanding, analysts must still account for the surprising resilience of regulation across all nine jurisdictions. One obvious explanation is that regulation is often very hard to eliminate once it is in place. To borrow a historical institutional term, it becomes locked into societies as actors adjust their behaviour and the expectations around it (North, 1990). Environmental groups, in particular, believe that regulation morally penalises polluters in a way that tradable permits and VAs do not. Our research suggests that NEPIs are not replacing regulations (that is, there is little obvious *replacement*). Rather, NEPIs are being used to plug the gaps in national policy systems or to respond to new, high profile problems such as climatic change. After 30 or more years of environmental regulation, there are not many gaps in national policy systems to fill with new instruments. More often than not, NEPIs *co-exist* or are *fused* with regulation.

Secondly, regulation (and government, more generally) often provide(s) an important, but very often neglected, support function as regards NEPI use (that is there is a significant *coexistence*). Amongst other things, it often provides formal authority to the agency tasked with designing and implementing a NEPI, and establishes the rules governing its operation. For example, the EU's EMAS system, whilst formally remaining voluntary, requires member states to take various actions, such as creating an accreditation system and a certification body.

A third explanation is that many environmental policy makers are, in Herbert Simon's apt phrase, as likely to be satisficers as utility maximisers. That is to say, whilst they recognise that regulation is imperfect, many still regard the case for adopting certain types of NEPI as largely unproven. Or, to put it slightly differently, when a surprisingly large number of (European) countries are confronted by a pressing and highly visible environmental threat, their first port of call very often is regulation. Their suspicions about NEPIs will doubtlessly have been confirmed by a recent OECD (2003) analysis, which concluded that the environmental effectiveness of some VAs is highly questionable. In Europe, tradable permitting is still largely unproven as a general policy instrument, although this might well change now that the EU's emission trading scheme is up and running.

The EU's Role

The EU's role in facilitating and/or retarding the shift to NEPIs (and hence, governance) is rather more difficult to decipher. We have already noted that regulation remains the mainstay of EU environmental policy in spite of substantial (but differential) NEPI adoption at the national level and the Commission's White Paper on Governance. Why is this? Apart from the many questions raised about their transparency and legitimacy, VAs are often technically complex to negotiate across borders, especially when well-established large industry associations are absent (for example, it is telling that the first EU VAs target the chemical and car industries and not retailing). Moreover, NEPIs may also experience potentially serious imple-

mentation problems (that is, how can free riders be made to comply with voluntary measures?) Until now, a minority of states (initially the UK, but now also Ireland and Spain) has managed to block the EC's ability to innovate with environmental taxation that, unlike most aspects of EU environmental policy, still falls under the unanimity rule. In fact, the EU's reliance on regulation is so deeply rooted that it has to implement many of its NEPIs (such as the eco-labelling, emissions trading and EMAS schemes) using different forms of regulation (that is, fusion). Thus, far from being a case of 'new governance' (Hix, 1998), the case of NEPIs underlines just how strongly the EU is constrained by member-state (that is, government) preferences.

Overall Assessment

Evidently, governance and government are not fixed entities, but two heuristic 'poles' on a continuum of different governing types. By adopting a relatively narrow empirical focus on environmental policy instruments, our article sheds new light on what is occurring between the poles. Broadly speaking, our nine jurisdictions have, on balance, shifted from a position of 'government' to one of 'governance' with respect to their use of (environmental) policy instruments. However, the total distance travelled along the continuum by the nine jurisdictions has been surprisingly modest. Furthermore, the overall pattern of change has been spatially, temporally and sectorally highly uneven. Our empirical research on NEPIs also reveals that very few of the jurisdictions actually started from a position of 'strong' government, because 'new' instruments were already popular in some of the states as far back as the 1970s. But then again, none of the jurisdictions has yet shifted decisively towards a position of 'strong' governance in which NEPI use is essentially 'self-organising'. Davies (2002), Bache (2003) and Pemberton (2003) all arrive at strikingly similar conclusions in relation to central government control over UK education, urban and economic policy, respectively. Knill and Lehmkuhl (2002) broadly make the same point in relation to EU policy-making.

Tables 1 and 2 reveal that the way in which policy instruments could potentially be used under conditions of governance and government, is much more complicated than some governance theorists like to think. By looking at the way in which policy instruments are actually being used 'in context', we have sought to reveal how the patterns of change and interaction between instrument types and different forms of societal steering, actually play out in practice. Our study shows that in spite of the rhetorical commitment to find less direct and hierarchical forms of state involvement (that is, more governance), governments (and the EU) find themselves inexorably drawn into the detailed process of designing, adopting and overseeing the implementation of *all* (environmental) policy instruments, however, supposedly 'soft' and 'new'.

Furthermore, the four categories of interactions noted earlier help to place different jurisdictions on the continuum of governing types. Thus, on balance, *co-existence* appears to be the most dominant, although there is some incipient *fusion* (for example, the UK's policy packages) and *competition. Replacement* is conspicuous by its absence from most of the nine jurisdictions despite an overall increase in the number of NEPIs. This raises interesting questions about the long-term resilience of regulation and, by implication, the likelihood of strong governance ever appear-

ing. Moreover, there is also a considerable degree of *competition* between different types of NEPIs (for example, VAs and eco-taxes), as well as between 'old' instruments (that is, regulation) and NEPIs (for example, VAs).

There are, however, a number of reasons why we do not want to leap to the obvious, but somewhat simplistic conclusion that governance (as defined earlier) is weak, whilst government remains relatively strong. First, although regulation undoubtedly retains much of its former importance, newer hybrid forms are nonetheless emerging in most jurisdictions that bear many features of governance (for example, self-monitoring, societal self-organisation and so on) (that is, a variant of *fusion*).[8] For example, some authors refer to the development of complementary combinations of different instruments as 'smart regulation' (Gunningham and Grabosky, 1998). Thus, in Australia, regulation is becoming more negotiated and 'light handed'; a 'new approach' relying on greater framework legislation is being trialled in the EU and in Finland, regulation increasingly serves a 'support function'. Either way, regulation should not (as some commentators have claimed), be rigidly and uncritically associated with government steering.

Secondly, much hangs on how *governance* is defined. We have relied upon a relatively and narrowly drawn definition, which commands widespread agreement amongst scholars of governance. We have already noted (earlier) the fact that our own empirical findings question the association between government and regulation. There are others who have questioned it on grounds that are more theoretical. Majone (1996), for example, persuasively argues that some of the most important drivers of governance, namely privatisation and new public management, actively require *more*, not less regulation. In other words, governance may generate a need for new forms of government. We have identified some examples of this and defined it as *fusion* in the analysis before. There is one other important point that should be made about the EU's use of softer policy instruments, such as via the open method of coordination. Héritier (2002), for example, suggests that they are used when the EU's competence to act is contested or weak, that is, they are not necessarily an end point but often the first step on the road to regulation. Our own research suggests that whilst policy instruments do seem to provide a useful touchstone for guiding comparative research, they should not be used in a heavy-handed manner, especially in multi-level settings such as the EU (Jordan, 2001).

Finally, our focus on instruments illuminates interesting temporal, spatial and sectoral patterns of change that have not yet excited the interest of governance scholars. For example, government (as we have defined it) may never have been as prominent in some continental European states as sections of the Anglo–American dominated literature imply (see also Mayntz and Scharpf, 1995). Our research confirms that governance has actually been around for a good deal longer: there are, for example, several prominent examples of 'self-organisation' to be found as early as the 1970s in some jurisdictions. The less hierarchical exchange relationships associated with some VAs, for example, are a very long established feature of Dutch, French, German and Austrian environmental policies. Admittedly, we have only looked at a selection of instruments in one sector across nine jurisdictions. Whilst we remain mindful of the need for further research, our results strongly suggest that '[t]he governance perspective ... is date

and place specific' (Stoker, 1998, p. 26). Should this concern policy makers? To the extent that adopting different instruments alters the overall equity, effectiveness and efficiency of (environmental) policy interventions in different countries, yes, it should (and, in fact, already does) actively interest policy makers (Jordan *et al.*, 2005).

To conclude, our approach does offer a useful means of capturing the changing relationship between government and non-governmental actors as they interact to steer society using different policy instruments. A tightly defined empirical analysis of their use suggests that governance has not uniformly or comprehensively eclipsed government. In seeking a better understanding of the subtle intermingling of governance and government, we have identified instances where practices normally associated with governance have emerged in relation to instruments (for example, regulation) that are widely regarded as being the quintessence of government. We have also shown that attempts to move towards governance by employing so-called softer tools often require government to find new ways of steering society from the centre. We also suggest that government may, in any case, never have been that dominant in some jurisdictions. We hope that these puzzling findings will inspire others to engage in a more empirically informed debate about the causes and consequences of governance in comparative perspective.

(*Accepted*: 10 February 2005)

About the Authors

Andrew Jordan, CSERGE, School of Environmental Sciences, University of East Anglia, Norwich NR4 7TJ, UK; email: *a.jordan@uea.ac.uk*

Rüdiger K. W. Wurzel, Department of Politics and International Studies, University of Hull, Cottingham Road, Hull HU6 7RX, UK; email: *R.K.Wurzel@hull.ac.uk*

Anthony Zito, School of Geography, Politics and Sociology, University of Newcastle upon Tyne, Newcastle upon Tyne NE1 7RU, UK; email: *a.r.zito@ncl.ac.uk*

Notes

We would like to thank Paul Kelly and three anonymous referees for their very useful comments on earlier drafts of this article. The research reported in this article was generously funded by the Economic and Social Research Council (under Grant Number L216252013) and The Leverhulme Trust.

1 Policy instruments are, of course, not the only available touchstones (for example, Andeweg, 2003), but their deployment is relatively straightforward to track across time and space.

2 We certainly do not wish to give the impression that there is a dichotomy between government and governance. To do so would blind the analyst to what (if anything) might be occurring between these two extremes.

3 For a definition of different sub-types, see OECD (1993, pp. 27–8; 1999a, pp. 7–8, 56).

4 Simplifying greatly, these establish markets that allow polluters to trade in a limited supply of 'pollution rights' (see also OECD, 1993, p. 23; 1999a, pp. 7–8).

5 That is, to say, NEPIs that are applicable on an EU-wide scale, rather than those adopted by its member states at the national level.

6 This is actually not terribly meaningful for our purposes, as countries collect data on the basis of different definitions of the same instrument (see text for details). Simple, quantitative measures may, therefore, obscure more than they reveal (for example, with eco-labels does one count the number of eco-label schemes, the number of labels awarded under a scheme or the total number of products/service groups within a particular scheme?). Hence, our preference is for a more disaggregated, qualitative approach (for details, see Jordan *et al.*, 2003a).

7 The Commission was concerned that European companies were shunning EMAS in favour of the globally recognised ISO standard.

8 We owe this point to Andrea Lenschow.

References

Andeweg, R. (2003) 'On Studying Governments', in J. Hayward and A. Menon (eds), *Governing Europe*. Oxford: Oxford University Press, pp. 39–60.

Armstrong, K. (2000) *Regulation, Deregulation and Re-regulation*. London: Kogan Page.

Bache, I. (2003) 'Governing Through Governance: Education Policy Control under New Labour', *Political Studies*, 51 (2), 300–14.

Bevir, M. and Rhodes, R. (2003) *Interpreting British Governance*. London: Routledge.

Börkey, P. and Lévèque, F. (1998) *Voluntary Approaches for Environmental Protection in the EU*. ENV/EPOC/GEEI (98) 29/final. Paris: Organisation for Economic Co-operation and Development.

Brown, L. (ed.) (1993) *The New Shorter Oxford English Dictionary*. Oxford: Clarendan Press.

Cashore, B. (2002) 'Legitimacy and the Privatization of Environmental Governance: How Non-state Market-driven (NSMD) Governance Systems Gain Rule-making Authority', *Governance*, 15 (4), 503–29.

Davies, J. (2002) 'The Governance of Urban Regeneration: A Critique of the "Governing without Government" Thesis', *Public Administration*, 80 (2), 301–22.

Eberlein, B. and Kerwer, D. (2004) 'New Governance in the EU: A Theoretical Perspective', *Journal of Common Market Studies*, 42 (1), 121–42.

Environmental Data Services (2003) 'Regulators Place EMS Auditors Under the Magnifying Glass', *ENDS Report*, 342 (July), 20–3.

European Environment Agency (2000) *Environmental Taxes: Recent Developments in Tools for Integration and Sustainable Development*. Copenhagen: European Environment Agency.

Finer, S. (1970) *Comparative Government*. Harmondsworth: Penguin.

Flinders, M. (2002) 'Governance in Whitehall', *Public Administration*, 80 (1), 51–76.

Golub, J. (ed.) (1998) *New Instruments of Environmental Policy*. London: Routledge.

Gunningham, N. and Grabosky, P. (eds) (1998) *Smart Regulation*. Oxford: Oxford University Press.

Hèritier, A. (ed.) (2002) *Common Goods: Reinventing European and International Governance*. Lanham MD: Rowman & Littlefield.

Heywood, A. (2000) *Key Concepts in Politics*. Basingstoke: Palgrave.

Hirst, P. (2000) 'Democracy and Governance', in J. Pierre (ed.), *Debating Governance*. Oxford: Oxford University Press, pp. 13–35.

Hix, S. (1998) 'The Study of the EU II: The "New" Governance Agenda and Its Rival', *Journal of European Public Policy*, 5 (1), 38–65.

Hooghe, L. and Marks, G. (2003) 'Unravelling the Central State, But How?', *American Political Science Review*, 97 (2), 233–43.

Howlett, M. (1991) 'Policy Instruments, Policy Styles and Policy Implementation', *Policy Studies Journal*, 19 (2), 1–21.

Jordan, A. (2001) 'The European Union: An Evolving System of Multi-Level Governance ... or Government?', *Policy and Politics*, 29 (2), 193–208.

Jordan, A. and Liefferink, D. (eds) (2004) *Environmental Policy in Europe*. London: Routledge.

Jordan, A., Wurzel, R. and Zito, A. (eds) (2003a) *New Instruments of Environmental Governance*. London: Frank Cass.

Jordan, A., Wurzel, R. K. W. and Zito, A. (2003b) 'European Governance and the Transfer of "New" Environmental Policy Instruments', *Public Administration*, 81 (3), 555–74.

Jordan, A., Wurzel, R. and Zito, A. (2005) 'Policy Instrument Innovation in the European Union', in G. Winter (ed.), *The Multi-level Governance of Global Environmental Change*. Cambridge: Cambridge University Press (forthcoming).

van Kersbergen, K. and van Waarden, F. (2004) '"Governance" as a Bridge Between Disciplines', *European Journal of Political Research*, 43 (2), 143–71.

Kjær, A. M. (2004) *Governance*. Oxford: Polity.

Knill, C. and Lehmkuhl, D. (2002) 'Private Actors and the State: Internationalization and Changing Patterns of Governance', *Governance*, 15 (1), 41–63.

Knill, C. and Lenschow, A. (eds) (2000) *Implementing EU Environmental Policy*. Manchester: Manchester University Press.

Kooiman, J. (2003) *Governing as Governance*. London: Sage.

Majone, G. (ed.) (1996) *Regulating Europe*. London: Routledge.

Marinetto, M. (2003) 'Governing Beyond the Centre', *Political Studies*, 51 (3), 592–608.

Mayntz, R. and Scharpf, F. (ed.) (1995) *Gesellschaftliche Selbstregulierung und politische Steuerung*. Frankfurt: Campus.

North, D. (1990) *Institutions, Institutional Change and Economic Performance*. Cambridge: Cambridge University Press.

Organisation for Economic Co-operation and Development (1993) *Taxation and the Environment*. Paris: Organisation for Economic Co-operation and Development.

Organisation for Economic Co-operation and Development (1994) *Managing the Environment: The Role of Economic Instruments*. Paris: Organisation for Economic Co-operation and Development.

Organisation for Economic Co-operation and Development (1999a) *Economic Instruments for Pollution Control and Natural Resources Management in OECD Countries: A Survey.* Paris: Organisation for Economic Co-operation and Development.

Organisation for Economic Co-operation and Development (1999b) *Voluntary Approaches for Environmental Policy*. Paris: Organisation for Economic Co-operation and Development.

Organisation for Economic Co-operation and Development (2001) *Domestic Transferable Permits for Environmental Management*. Paris: Organisation for Economic Co-operation and Development.

Organisation for Economic Co-operation and Development (2003) *Voluntary Approaches for Environmental Policy*. Paris: Organisation for Economic Co-operation and Development.

Osborne, D. and Gaebler, T. (1992) *Re-inventing Government*. Reading MA: Addison-Wesley.

Pemberton, H. (2003) 'Learning, Governance and Economic Policy', *British Journal of Politics & International Relations*, 2 (3), 233–43.

Peters, B. G. (2000) 'Government and Comparative Politics', in J. Pierre (ed.), *Debating Governance*. Oxford: Oxford University Press, pp. 36–53.

Pierre, J. (2000a) 'Introduction', in J. Pierre (ed.), *Debating Governance*. Oxford: Oxford University Press, pp. 1–10.

Pierre, J. (2000b) 'Conclusions: Governance Beyond State Strength', in J. Pierre (ed.), *Debating Governance*. Oxford: Oxford University Press, pp. 241–6.

Pierre, J. and Peters, B. G. (2000) *Governance, Politics and the State*. Basingstoke: Macmillan.

Rhodes, R. A. W. (1996) 'The New Governance: Governing Without Governance', *Political Studies*, 44 (4), 652–67.

Rhodes, R. A. W. (1997) *Understanding Governance*. Milton Keynes: Open University Press.

Rhodes, R. A. W. (2000) 'Governance and Public Administration', in J. Pierre (ed.), *Debating Governance*. Oxford: Oxford University Press, pp. 54–90.

Richards, D. and Smith, M. (2002) *Governance and Public Policy*. Oxford: Oxford University Press.

Rosenau, J. N. (1992) 'Governance, Order and Change in World Politics', in J. Rosenau and E.-O. Czempiel (eds), *Governance Without Government*. Cambridge: Cambridge University Press, pp. 1–29.

Russell, C. and Powell, R. (1996) 'Practical Considerations and a Comparison of Instruments of Environmental Policy', in J. van der Bergh (ed.), *Handbook of Environment and Resource Economics*. Cheltenham: Edward Elgar, pp. 230–47.

Schout, A. and Jordan, A. (2005) 'Coordinated European Governance: Self Organised or Centrally Steered?', *Public Administration*, 83 (1), 201–20.

Stoker, G. (1998) 'Governance as Theory', *International Social Science Journal*, 155, 17–28.

Vogel, D. (1986) *National Styles of Regulation*. New York: Cornell University Press.

Weale, A. (1992) *The New Politics of Pollution Control*. Manchester: Manchester University Press.

Zito, A., Radaelli, C. and Jordan, A. (eds) (2003) 'Introduction to the Symposium on "New" Policy Instruments in the European Union', *Public Administration*, 81 (3), 509–11.